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Title 33 — Navigation and Navigable Waters

Chapter I — Coast Guard, Department of Homeland Security

Subchapter A — General

Part 13 Decorations, Medals, Ribbons and Similar Devices

Subpart 13.01 Gold and Silver Lifesaving Medals, Bars, and Miniatures

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PART 13—DECORATIONS, MEDALS, RIBBONS AND SIMILAR DEVICES

Authority: 14 U.S.C. 503, 2744; 49 U.S.C. 1655(b); sec. 6(b)(1), 80 Stat. 938; 49 CFR 1.4 (a)(2) and (f).

Source: CGFR 68-134, 33 FR 18932, Dec. 19, 1968, unless otherwise noted.

Subpart 13.01—Gold and Silver Lifesaving Medals, Bars, and Miniatures

§ 13.01-1 General.

Lifesaving Medals of gold and silver, designated as the Gold Lifesaving Medal and the Silver Lifesaving Medal, respectively, may be awarded by the Commandant, U.S. Coast Guard, hereinafter called the Commandant, under 14 U.S.C. 2744 and the regulations in this subpart to persons rescuing or endeavoring to rescue any other person from drowning, shipwreck or other peril of the water.

[CGFR 68-134, 33 FR 18932, Dec. 19, 1968, as amended by USCG-2020-0304, 85 FR 58276, Sept. 18, 2020]

§ 13.01-5 Gold and Silver Lifesaving Medals.

Lifesaving Medals may be awarded to any person who rescues or endeavors to rescue any other person from drowning, shipwreck or other peril of the water. In order for a person to be eligible for a Lifesaving Medal the rescue or attempted rescue must take place in waters within the United States or subject to the jurisdiction thereof, or if the

rescue or attempted rescue takes place outside such waters, one or the other of the parties must be a citizen of the United States or from a vessel or aircraft owned or operated by citizens of the United States. If such rescue or attempted rescue is made at the risk of one's own life and evidences extreme and heroic daring, the medal shall be of gold. If such rescue or attempted rescue is not sufficiently distinguished to deserve the medal of gold but evidences the exercise of such signal exertion as to merit recognition, the medal shall be of silver. Lifesaving Medals may be awarded posthumously.

§ 13.01-10 Gold and silver bars.

No person shall receive more than one Gold Lifesaving Medal and one Silver Lifesaving Medal; but any person who has received or may hereafter receive a Gold or Silver Lifesaving Medal and who again performs an act which would entitle him to receive another medal of the same class, may be awarded, in lieu of a second medal of the same class, a gold or silver bar, as the case may be, to be worn with the medal already bestowed, and for every such additional act, an additional bar may be awarded. Gold and silver bars may be awarded posthumously.

§ 13.01-15 Applications and recommendations.

- (a) All administrative details pertaining to the award of Lifesaving Medals are under the jurisdiction of the Commandant. Applications and recommendations for the award of a Lifesaving Medal may be filed by or in behalf of the person making or attempting a rescue under circumstances contemplated by the regulations in this subpart. Applications or recommendations for award of medals or requests for information pertaining thereto should be addressed to the Commander of the Coast Guard District, hereinafter called the District Commander, where the incident took place. (See part 3 of this subchapter for descriptions of Coast Guard Districts.) If the District is unknown, or if the incident took place outside any such district, applications and recommendations should be addressed to the Commander, Personnel Service Center (PSC-PSD-M&A), U.S. Coast Guard Stop 7200, 4200 Wilson Boulevard Suite 1100, Arlington, VA 20598-7200.
- (b) Completed applications must include:
 - (1) Satisfactory evidence of the services performed, in the form of affidavits, made by eyewitnesses of good repute and standing testifying of their own knowledge. The opinion of witnesses that the person for whom an award is sought imperiled his or her own life or made signal exertions is not sufficient but the affidavits must set forth in detail all facts and occurrences tending to show clearly in what manner and to what extent life was risked or signal exertions made so that the Commandant may judge for himself as to the degree of merit involved.
 - (2) The precise locality of the rescue or attempted rescue, whether from waters within the United States or subject to the jurisdiction thereof, or if the rescue or attempted rescue is outside such waters, whether one or the other of the parties is a citizen of the United States, or from a vessel or aircraft owned or operated by citizens of the United States, shall be stated. The date, time of day, nature of the weather, condition of the water, the names of all persons present when practicable, the names of all persons rendering assistance, and all pertinent circumstances and data, showing the precise nature and degree of risk involved, should be stated.
- (c) Recommendations must include:
 - (1) As much of the information indicated in paragraphs (b) (1) and (2) of this section which is available to the person making the recommendation. Upon receipt the Commandant or the cognizant District Commander shall cause such recommendation to be referred to an investigating officer who shall cause to be developed such additional information and evidence as is deemed necessary to either

- (i) terminate the investigation as containing insufficient justification to continue further, or
 - (ii) to complete the application for submission to the Commandant for his final determination.
- (d) Either the Commandant or the District Commander may, without any application or recommendation, of his own motion, order an informal investigation into such an incident under Administrative Investigations Manual, COMDTINST M5830.1A (2007).
- (e) Affidavits required by this subpart shall be made before an officer duly authorized to administer oaths and if taken before an officer without an official seal, his official character must be certified by the proper officer of a court of record, under the seal thereof, unless the oath be taken before an officer of the Armed Forces authorized to administer oaths under the provisions of Article 136, UCMJ (10 U.S.C. 936).
- (f) Cognizant District Commanders shall act upon all applications and recommendations submitted to them from whatever source and shall:
 - (1) Forward completed applications with his recommendations to the Commandant for his consideration and determination; or,
 - (2) Inform the applicant or the person submitting the recommendation that he considers such application or recommendation incomplete together with the reasons therefor and that a period of 90 days will be allowed for additional evidence to be provided upon the expiration of which he will file the application or recommendation without further action.
- (g) Whenever the cognizant District Commander shall deem such action necessary, he may require that the aforementioned affidavits shall be accompanied by a certificate showing the affiants to be credible persons, certified by some U.S. Officer, such as a judge or clerk of a U.S. Court, district attorney, collector of customs, postmaster, or officer of the Armed Forces. If the affiant is a citizen or resident of a foreign country and if the affidavit is executed in such foreign country, the credibility certificate may be executed by an officer of such foreign country, who occupies an official position similar to the aforementioned U.S. officers.
- (h) The decision of the Commandant on all applications, recommendations, and investigations for the Gold or Silver Lifesaving Medals shall be final.

[CGFR 68-134, 33 FR 18932, Dec. 19, 1968, as amended by USCG-2010-0351, 75 FR 36278, June 25, 2010; USCG-2013-0397, 78 FR 39170, July 1, 2013; USCG-2014-0410, 79 FR 38427, July 7, 2014]

§ 13.01-20 Definitions.

As used in the statutes cited and in the regulations in this subpart:

- (a) "Peril of the water" includes all perils on water caused by, or which are such by reason of, the sea or bodies of water such as lakes, bays, sounds and rivers; whenever, wherever and in whatever way human life is directly imperiled by the sea or a body of water is a peril of the water.
- (b) A "shipwreck" includes an incident threatening persons whose lives are endangered by perils of the water as well as those who are, strictly speaking, no longer in danger from the sea or a body of water, that peril already having passed, but who are in imminent danger and in great need of succor or rescue, as e.g., being adrift in an open boat or stranded on some barren coast where, without succor or rescue, they would die of starvation, thirst, or exposure.

- (c) "Waters within the United States or subject to the jurisdiction thereof," embrace all waters within the United States, and any other waters over which the United States exercises jurisdiction.

§ 13.01-25 Description of Gold Lifesaving Medal.

- (a) The Gold Lifesaving Medal is 99.9 percent pure gold and consists of a pendant suspended by a swivel from the head of an eagle attached to a silk grogram ribbon 1 and $\frac{3}{8}$ ths inches in width, composed of a $\frac{3}{16}$ ths of an inch red stripe, a $\frac{1}{32}$ d of an inch white stripe, a $\frac{15}{16}$ ths of an inch gold stripe, a $\frac{1}{32}$ d of an inch white stripe, and a $\frac{3}{16}$ ths of an inch red stripe. The pendant is 1 and $\frac{7}{16}$ ths inches in diameter and $\frac{3}{32}$ ds of an inch in thickness. There appear, on the obverse side of the pendant, three men in a boat in a heavy sea; one is rescuing a person clinging to a spar at the end of which is a block and line; another is standing, prepared to heave a line; a third is rowing; in the distance, to the left, is the wreck of a vessel; the whole is encircled by the words: "United States of America", in the upper half, and "Act of Congress, August 4, 1949", in the lower half. On the reverse side of the pendant there appears, in the center a monument surmounted by an American eagle; the figure of a woman stands, to the left, holding in her left hand an oak wreath, and with her right hand, preparing to inscribe the name of the recipient on the monument; to the right are grouped a mast, a yard with a sail, an anchor, a sextant, and a laurel branch; the whole is encircled by the words: "In testimony of heroic deeds in saving life from the perils of the water."
- (b) Engraving: Before presentation, the recipient's name shall be inscribed on the "monument", on the reverse of the medal.

§ 13.01-30 Description of Silver Lifesaving Medal.

- (a) The Silver Lifesaving Medal is 99 percent pure silver and consists of a pendant suspended by a swivel from the head of an eagle attached to a silk grogram ribbon 1 and $\frac{3}{8}$ ths inches in width, composed of a $\frac{3}{16}$ ths of an inch blue stripe, a $\frac{1}{32}$ d of an inch white stripe, a $\frac{15}{16}$ ths of an inch silver gray stripe, a $\frac{1}{32}$ d of an inch white stripe, and a $\frac{3}{32}$ ds of an inch blue stripe. The pendant is 1 and $\frac{7}{16}$ ths inches in diameter and $\frac{3}{32}$ ds of an inch in thickness. On the obverse side of the pendant there appears the figure of a woman hovering over a man struggling in heavy sea and extending to him one end of a long scarf; the whole is encircled by the words: "United States of America", in the upper half, and "Act of Congress, August 4, 1949", in the lower half. On the reverse there appears a laurel wreath encircled by the words: "In testimony of heroic deeds in saving life from the perils of the water."
- (b) Engraving: Before presentation, the recipient's name shall be inscribed inside the laurel wreath, on the reverse of the medal.

§ 13.01-35 Description of gold and silver bars.

- (a) The bar is plain and horizontal, composed of the same metal as the medal previously awarded recipient, and is 1 and $\frac{5}{8}$ ths inches long by $\frac{3}{16}$ ths of an inch wide with a flowing ribbon draped over the left end and passing in back and appearing beneath the bar. The part of the ribbon showing beneath the bar bears the inscription "Act of Congress, August 4, 1949", in raised block letters. The bar and ribbon are in folds of a spray of laurel with the leave showing above and beneath.
- (b) Engraving: Before presentation, the recipient's name shall be inscribed on the obverse of the bar.

§ 13.01-40 Miniature medals and bars.

- (a) Miniature Gold and Silver Lifesaving Medals and bars are replicas of the Lifesaving Medals and bars, to be worn on civilian clothing. Such miniatures are not furnished by the Government.

- (b) Miniature medals and bars may be procured from sources authorized by the Commandant, U.S. Coast Guard, to furnish same to persons who produce original documentary evidence of having been awarded the medal or bar for which a miniature replica is desired.

§ 13.01-45 Replacement of medals and bars.

The Gold or Silver Lifesaving Medal or bar will be replaced at cost to the applicant upon submitting a statement in affidavit form of having been awarded a medal or bar and the circumstances involving loss of same. A Lifesaving Medal or bar, however, may be replaced without charge in the discretion of the Commandant, if said medal or bar has, under extremely unusual circumstances, been lost, destroyed or rendered unfit for use without fault or neglect on the part of the person to whom it was awarded.